

RYAN v. HUTCHINSON

Case No. 19CV44070

**SECOND AMENDED MOTION FOR ORDER SUBSTITUTING
SUCCESSOR-IN-INTEREST**

This is a renewed motion to substitute defendant's estate as a party-defendant.

At the previous hearing, the Court continued the matter and ordered proper service of on all lawyers, including those representing the estate. (Additionally, if there was no opposition, the parties were encouraged to file a stipulation and order allowing the substitution.) No stipulation was filed nor any opposition. Proofs of Service on attorneys Brian Chavez-Ochoa and Theresa Haeefele is included with the Motion.

Order requesting substitution is GRANTED.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to California Rule of Court 3.1312 in conformity with this ruling.

ANDREWS v. ANDERSON

Case No. 23CV46644

DEFENDANTS' DEMURRER TO SECOND AMENDED COMPLAINT

Plaintiff MEG ANDREWS alleges breach of contract, fraud, and elder abuse, with regard to construction work at 3441 Appaloosa Road in Angels Camp.

Before the Court is defendants' demurrer to the Second Amended Complaint.

FRAUD ALLEGATIONS

The general rule concerning pleading a cause of action in fraud is that fraud must be specifically pleaded, and the complaint must state specific facts of how and where the fraud occurred. A vague inclusion of terms contained in the second amended complaint such as: "under the false pretense that false promises," "intentional representations," and/or "The fraud of Defendants, and each of them, was and is malicious, oppressive, despicable, and justifies the recovery of punitive and exemplary damages in amounts according to proof" does not provide the requisite specificity.

The effect of this general rule is twofold: (1) the facts constituting fraud must be alleged (that is, general pleading of the legal conclusion of fraud is insufficient); and (2) every element of the cause of action for fraud must be alleged factually and specifically. The policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. (Hall v. Department of Adoptions (1975) 47 Cal. App. 3d 898, 904, (quoting a legal commentator); Bank of America v. Vannini (1956) 140 Cal. App. 2d 120, 130 (party pleading defense based on fraud required to set forth all elements of fraud)).

Each element of a fraud claim must be factually and specifically alleged by the plaintiff. (See Small v. Fritz Companies, Inc., (2003) 30 Cal. 4th 167, 184.) The policy of liberal construction of pleadings is generally not invoked to sustain a pleading of a fraud claim that is defective in any material respect, and mere conclusory allegations are insufficient. (See Cadlo v. Owens-Illinois, Inc., (2004) 125 Cal. App. 4th 513, 519.)

In California, a plaintiff must plead all the circumstances constituting the alleged fraud with *specificity*. This requirement necessitates pleading facts that show how,